

**SUBSTITUTE FOR
SENATE BILL NO. 521**

A bill to amend 1927 PA 175, entitled
"The code of criminal procedure,"
by amending section 16w of chapter XVII (MCL 777.16w), as amended
by 2016 PA 486.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

CHAPTER XVII

Sec. 16w. (1) This chapter applies to the following felonies
enumerated in chapter 750 of the Michigan Compiled Laws:

M.C.L.	Category	Class	Description	Stat Max
750.451(3)	Pub ord	GE	Prostitution – various offenses – third or subsequent offense	25



1	750.451(4)	Person	EB	Soliciting a person	5 20
2				under 18 years of age	
3				to commit prostitution	
4	750.452	Pub ord	E	Keeping a house of	5
5				prostitution	
6	750.455	Pub ord	B	Pandering	20
7	750.456	Person	B	Placing spouse into	20
8				prostitution	
9	750.457	Pub ord	B	Accepting earnings of	20
10				a prostitute	
11	750.458	Person	B	Prostitution –	20
12				detaining person for	
13				debt	
14	750.459(1)	Person	B	Transporting a person	20
15				for prostitution	
16	750.459(2)	Person	E	Selling travel	5
17				services to facilitate	
18				prostitution or human	
19				trafficking in other	
20				jurisdictions	
21	750.459(3)	Person	D	Selling travel	10
22				services to facilitate	
23				prostitution or human	
24				trafficking in other	
25				jurisdictions	
26				involving a minor	
27	750.462f(1)(a)	Person	DB	Human trafficking	10 20
28				violation	

1	750.462f(1)(b)	Person	C	Human trafficking	15
2				violation resulting in	
3				bodily injury	
4	750.462f(1)(c)	Person	B	Human trafficking	20
5				violation resulting in	
6				serious bodily injury	
7	750.462f(1)(d)	Person	A	Human trafficking	Life
8	750.462f(1)(b)			violation involving	
9				death or the	
10				commission of certain	
11				felonies	
12	750.462f(2)	Person	BA	Obtaining a minor for	20Life
13				commercial sexual	
14				activity or for forced	
15				labor or services	
16	750.462f(3)	Person	Variable	Attempting,	Variable
17			e	conspiring, or	
18				soliciting another to	
19				violate human	
20				trafficking laws	
21	750.465a(1)(b)	Property	G	Operating audiovisual	2
22				recording device in a	
23				theatrical facility –	
24				second offense	
25	750.465a(1)(c)	Property	F	Operating audiovisual	4
26				recording device in a	
27				theatrical facility –	
28				third or subsequent	
29				offense	

1 (2) For a violation of section 462f(3) of the Michigan penal
2 code, 1931 PA 328, MCL 750.462f, determine the offense category,
3 offense variable level, and prior record variable level based on
4 the underlying offense.

5 Enacting section 1. This amendatory act takes effect 90 days
6 after the date it is enacted into law.

7 Enacting section 2. This amendatory act does not take effect
8 unless all of the following bills of the 103rd Legislature are
9 enacted into law:

10 (a) Senate Bill No. 520.

11 (b) Senate Bill No. 705.